

SPECIFICATIONS

MCCLELLAN-KERR ARKANSAS
RIVER NAVIGATION SYSETEM
CHOUTEAU & NEWT GRAHAM
PROJECTS
OKLAHOMA

MAINTENANCE CONTRACT
FOR
MOWING

ORGANIZATION OF SPECIFICATIONS

This specification consists of a general section supplemented by exhibits and appendices. A Table of Contents is provided on the following pages.

The general section contains requirements that apply to all work to be performed under the provisions of this specification. The exhibits contain detailed listings or examples referred to in the general section and the Performance Requirements. The appendices contain a description of the facilities to be serviced and the work to be performed.

Any reference to paragraphs or subparagraphs in this specification will refer to those in the general section unless otherwise noted.

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1. SCOPE OF WORK. The work required under this specification provides for the mowing of public use areas, dikes, and other areas on project lands at Chouteau and Newt Graham Projects.

2. DEFINITIONS.

2.1. Contracting Officer Representative (COR) A Government employee designated by the Contracting Officer as their representative in administering this contract.

2.2. Contractor Quality Control (CQC). The contractor's system of controlling the quality of services provided under the provisions of the contract.

2.3. Deficient Service. Any service provided by the contractor that does not meet the Performance Standards specified in the Performance Requirements given in Exhibit 1.

2.4. Government. The term "Government" as used herein means the United States of America.

2.5. Mowing Request. The means by which mowing work is ordered.

2.6. Performance Requirement (PR). The Government's requirement for each service provided under the contract. The requirements are stated as Performance Standards (PStd) and specify the minimum standard (quality) for each service provided under the contract.

2.7. Project. The term "project" as used herein means all Government property and easements at Chouteau/Newt Graham Projects.

2.8. Public Use Area (PUA). Parks as well as overlooks, nature and hiking trails, access points, and other areas used by the public for recreation.

2.9. Quality. Conformance with the contract specification.

2.10. Quality Assurance (QA). The procedure by which the Government determines CQC is functioning effectively.

2.11. Regulations. The term "regulations" refers to any local, state, or Federal law or regulation applicable to operation or maintenance of the project.

2.12. Workday. Any day, Monday through Friday, exclusive of Federal holidays. This definition should not be interpreted to mean work is not required by this specification on other days.

3. REFERENCES. Corps of Engineers Safety and Health Requirements Manual (EM 385-1-1, current edition) is hereby incorporated into this specification. The COR will furnish the web site of the EM 385-1-1 to the contractor after contract award.

4. INITIATION, EXECUTION, AND ACCEPTANCE OF WORK.

4.1. PERFORMANCE BASED MOWING

4.1.1. Initiation and execution of work. Work shall be performed as needed to comply with the performance standards (Performance Requirements Table, Exhibit 1). It is the contractor's responsibility to determine mowing frequency and perform the mowing without work orders from the Contracting Officer. Work will be accepted based on compliance with performance requirements. Refer to Paragraph 7. For inspection criteria and contractor performance evaluation.

4.2. Acceptance of Work. The Government shall accept work unless the Contracting Officer notifies the contractor of deficient services.

4.2.1. Initial notification of deficiencies may be written or oral; however, all oral notification

shall be confirmed by the Contracting Officer in writing within two (2) workdays. Written notification shall be provided by completing Parts I, II, and III of a Quality Assurance (QA) Report (SWT Form 982, Exhibit 2).

4.2.2. If the COR directs re-performance of work to correct deficiencies, the contractor shall initiate action to accomplish corrective work within two business days.

4.2.3. The contractor shall notify the COR when corrective work is completed. Notification shall be made by completing Part IV of the QA Report provided it has been furnished to the contractor. If not, notification shall be made orally. When work has been corrected, the Contracting Officer shall take necessary action to complete Part V of the QA Report and provide a copy to the contractor.

5. PERSONNEL. The contractor shall provide personnel necessary to accomplish all work required by this specification within specified time limits.

5.1. Experience and Skills. The contractor shall provide personnel that are experienced in the skills required performing the various types of work specified.

5.2. Supervision.

5.2.1. The contractor shall provide an on-site supervisor who shall have full authority to direct any work required. This supervisor and alternates, who shall have full authority to execute work during brief absences of the supervisor, shall be designated in writing. The supervisor or alternate shall be on site at all times work is being performed.

5.2.2. The contractor shall provide the COR telephone number at or through which the supervisor can be reached between 8:00 a.m. and 4:30 p.m. on all days' work is being performed.

5.2.3. The contractor shall provide the COR a telephone number at which the supervisor or alternate can be reached at all times other than those specified in subparagraph 5.2.2.

6. EQUIPMENT. The contractor shall furnish equipment necessary to accomplish all work required by this specification within specified time limits.

6.1. Equipment Inspections. Upon request, the contractor shall present equipment to the COR for inspection. Equipment brought to the project shall not be used until it has passed inspection by the COR. The COR shall establish the time and location for inspections.

6.2. Equipment Requirements. All equipment used to perform work under this specification must be in good operating and mechanical condition and shall comply with EM 385-1-1.

6.2.1. Tractors shall be equipped and operated in accordance with the following:

6.2.1.1. Power take offs on tractors shall operate at a minimum of 540 rpm during mowing operations.

6.2.1.2. Seat belts shall be worn at all times by tractor operators.

6.2.1.3. A substantial guard or shield shall be installed on the tractor to protect the operator from flying objects during mowing. The guard or shield shall be covered with not less than 3-inch woven wire mesh or expanded metal with openings no greater than one inch.

6.2.1.4. Rollover protection shall be provided. If the equipment is not designed and installed by the manufacturer of the tractor, the contractor shall furnish a certificate from a registered professional engineer that the rollover protection is structurally safe for its intended purpose.

6.2.1.5. Mowers shall be commercial rotary-type or flail-type and shall meet the following

requirements:

- 6.2.1.6. Mowers shall be equipped with rear or side discharge, safety chains, rock guards or other protective devices to prevent flying objects from injuring people or damaging property.
- 6.2.1.7. Mowers shall be equipped with slides and wheels.
- 6.2.1.8. Brush hogs (if used), shall be approved by the COR prior to use on the slopes of dikes around oxidation ponds.
- 6.2.1.9. Brush hogs shall not be used when mowing within 10 feet of facilities in improved areas.
- 6.2.1.10. All safety devices provided by the manufacturers of push and riding mowers shall function as designed.
- 6.2.1.11. Signs located on each side of the vehicles shall mark all sedans and trucks used by the contractor to perform work under this specification. Signs may be painted on the doors or magnetic signs may be attached to the doors. Magnetic signs shall not be removed at any time vehicles are at the project. Lettering shall be at least 2 inches high. Each sign shall contain the following:

FORT GIBSON LAKE MOWING
SERVICES PROVIDED BY
(Contractor's Name)

6.3. Equipment Operation.

- 6.3.1. Mowing equipment shall be operated in a manner that will allow for discharge of grass clippings away from roads, ponds, facilities, etc., and prevent damage to turf.
- 6.3.2. Power operated trimming equipment shall not be used around any shrubs or trees with a diameter less than 3 inches at breast height.
- 6.4. Vehicle Operation and Parking. While performing work under this contract, vehicles shall be operated and parked only on roads, parking areas, or pullouts unless the COR approves use of other areas.

7. PERFORMANCE REQUIREMENTS. PRs for work performed under this specification are given in Exhibit 1. The contractor's performance will be evaluated using these PRs as follows:

- 7.1. Services provided by the contractor will be inspected for compliance with PStds. Those not meeting PStds shall be considered deficient. Major or recurring minor deficiencies will result in a letter of correction being issued by the COR.
- 7.2. Deficient services are determined during initial QA inspections since the purpose of QA is to determine how well CQC is functioning. The results of inspections are not changed as a result of satisfactory re-performance.

8. CONTRACTOR QUALITY CONTROL. The contractor shall establish and execute a CQC Program in accordance with clause 52.246-4 "Inspection of Services" to assure that all work required by this specification is completed on schedule and in accordance with the PRs in Exhibit 1.

8.1. The results of all quality control inspection conducted by the contractor shall be entered on the Quality Control Inspection Log (SWT Form 990, Exhibit 3). A copy of completed inspection logs shall be furnished to the Contracting Officer weekly.

8.2. The Contracting Officer may waive the requirements in subparagraph 8.1. if he determines proper CQC can be achieved without the required submissions. The Contracting Officer will normally make this determination on the basis of actual performance by the contractor.

9. DEDUCTIONS FOR DEFICIENT WORK. Deductions from the contractor's scheduled earnings shall be made for services that do not meet the Performance Standards in Exhibit 1. Deductions for documented defects will be made in accordance with the following procedures:

9.1. Each service found deficient and re-performed by the contractor: No deduction.

9.2. Each service found deficient and performed by the Government: Deduction for loss in value shall be based on the Government's cost for performing the work.

9.3. Each service found deficient and performed by another contractor: Deduction is the contract price paid the other contractor to perform the work.

9.4. Each service found deficient and not re-performed by anyone, or work not performed at all: Deduction for loss in value shall be based on estimates of the contractor's cost for performing the work, i.e., labor, materials, equipment costs, work schedules, etc. Loss in value shall be based on the contract bid price or applicable portion thereof.

10. SAFETY.

10.1. Safety Plan. The contractor shall furnish the COR a comprehensive safety plan to implement the general policies and procedures for safe operation and maintenance of the project in accordance with EM 385-1-1. The safety plan shall include, but not be limited to the following:

10.1.1. Procedures for training employees in responsibilities for safety of others, including the general public.

10.1.2. Requirements for wearing or utilizing personal safety equipment and apparel.

10.1.3. Procedures for handling, reporting, and correcting unsafe conditions, practices, and safety violations.

10.1.4. Procedures for treating and transporting injured persons to medical facilities.

10.1.5. Fire prevention plans.

10.1.6. Job hazard analysis shall include an evaluation of hazards that might be encountered for an operation, and proposed methods and techniques for accomplishing each job in a safe manner. Contractor personnel shall be thoroughly indoctrinated with job hazard analysis, especially at the start of a major job. Initially, the safety plan shall include, but not be limited to, job hazard analysis for the jobs listed below. However, the contractor shall prepare additional analysis as the need arises and/or the COR directs. Job hazard analysis directed by the COR shall be submitted for approval within one (1) week. An example of a job hazard analysis is given in Exhibit 4.

10.1.6.1. Loading and unloading of equipment (analysis for each type of equipment to be used to perform services required by this specification).

10.1.6.2. Equipment operation and maintenance (for each type of equipment).

10.1.6.3. Vehicle operation and maintenance.

10.2. Safety Violations. If a contractor's employee persists in not following the safety requirements of this specification or the contractor's safety plan, the employee shall be permanently discharged upon the request of the COR.

10.3. Personal Clothing and Safety Apparel. Contractor personnel shall wear clothing suitable for

the weather and working conditions. The minimum shall be short-sleeve shirt and long trousers (no sleeveless shirts or tank tops, or shorts). Clothing shall be in good repair, i.e., no torn shirts or trousers. Personnel performing mowing work shall wear eye and ear protection, hardhats, and safety-toe shoes.

Personnel shall wear additional protective apparel when required by Section 5, EM 385-1-1.

10.4. Accident Reports.

10.4.1. The contractor shall immediately notify the COR of all known accidents that occur at the project and result in death or serious injury.

10.4.2. The contractor shall investigate all accidents involving contractor or subcontractor employees that result in death, traumatic injury, occupational disease, or damage to property, materials, supplies and equipment incidental to work performed under this specification. The results of investigations shall be reported to the COR immediately, and in writing on ENG Form 3394, Accident Investigation Report, within one (1) workday following the accident.

10.5. Exposure Reports. The contractor shall maintain an accurate record of exposure data (man-hours worked) and submit the figure in writing monthly prior to the 5th workday of the following month.

11. REPORTING DEFECTIVE FACILITIES. While performing work, contractor personnel shall observe the condition of Government facilities. Damaged, defective, and/or inoperative facilities shall be reported to the COR upon discovery.

PREWORK CONFERENCE. The COR shall conduct a mandatory Pre-work Conference with the contractor to discuss the provisions of this specification and the contractor's submittals listed in paragraph 13 below. As a minimum, the officer of the company that signed the contract, the on-site supervisor shall represent the contractor, and the person that will directly supervise the administrative work associated with the contract.

12. The COR shall establish the location, date, and time of the Pre-work Conference after consultation with the contractor.

13. CONTRACTOR SUBMITTALS. Unless otherwise noted, the contractor shall submit the documents listed below to the COR prior to starting work. All submittals, other than copies of licenses and contracts, shall be typed and the original and one copy shall be furnished the COR. If the COR determines any of the proposed plans or schedules do not comply with this specification, the contractor shall resubmit these documents within one (1) week.

13.1. Names of on-site supervisor and alternate (submit prior to initiation of work and prior to changing designated employees) (subparagraph 5.2.1.).

13.2. Safety Plan (subparagraph 10.1.).

13.3. Job Hazard Analysis (subparagraph 10.1.6).

13.4. Exposure report form (submit prior to the 5th workday of each month) (subparagraph 10.5.).

14. BILLING.

14.1. The contractor shall submit the invoice on completed, inspected and approved work at the end of each month for all work that has been performed. However, an invoice not completed correctly will be rejected and a corresponding request for a revised and corrected invoice will be initiated promptly.

14.2. Invoices shall be prepared in the format shown at Exhibit 5.

14.3. All exposure reports shall be submitted before an invoice will be processed.

14.4. The invoices and supporting documents shall be delivered, mailed or emailed to the Lake Manager, Fort Gibson Lake Office, 8568 State HWY 251-A, Fort Gibson, OK, 74434.

15. CHANGES IN AMOUNT OF FACILITIES SERVICED. Adjustment in contract price will be negotiated at the request of either party, only if either or both of the following conditions occur.

15.1. Services required are deleted for a period of one (1) month or longer in an entire park.

15.2. A singular change in the amount of project facilities to be serviced is made and the change results in an annual increase or decrease in the cost of work that exceeds \$300. The cost of increases or decreases shall be based upon estimates of the contractor's costs for performing the work.

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EXHIBIT 1

PERFORMANCE REQUIREMENTS

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PERFORMANCE REQUIREMENTS

SERVICE REQUIREMENT	PR NO.	PERFORMANCE STANDARD
Appendix A - Mowing		
Improved areas	A 1	Smooth cut. Height maintained within min/max as specified. No uncut vegetation.
Lawn areas	A 2	Smooth cut. Height maintained within min/max as specified. No uncut vegetation.
Semi-improved areas	A 3	Smooth cut. Height maintained within min/max as specified. No uncut vegetation.
Levee, dike, & ponding areas	A 4	Smooth cut. Height maintained within min/max as specified. No uncut vegetation.
Trimming	A 5	Uniform cut with no scalping of grass. No damage to trees or shrubs.
Clean designated areas after mowing	A 6	No vegetation or debris left on paved surfaces.

1 . Conformance with height requirement shall be determined by measuring the height of cut grass on smooth ground.

2 . The COR will relax this requirement to a reasonable degree when the height of grass prior to mowing is excessive. The determination of excessive grass height shall be made unilaterally by the COR.

EXHIBIT 2
QUALITY ASSURANCE REPORT

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EXHIBIT 3

QUALITY CONTROL INSPECTION LOG

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EXHIBIT 4

EXAMPLE OF JOB HAZARD ANALYSIS

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EXHIBIT 5
INVOICE FORMAT

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BILLING FOR MAINTENANCE CONTRACT

PROJECT: _____

SHEET _____ OF _____

CONTRACTOR: _____

DATE: _____

ADDRESS: _____ CONTRACT NO: W912BV-__-__-_____

BILLING PERIOD: _____ THRU _____

INVOICE NO: _____

PAYMENT TERMS: _____
(Payment Discount or N/A)

CLIN
NO.

DEDUCTION

AMOUNT

TOTAL

PAYMENT REQUESTED: _____

CONTRACTOR (Signature/Date)

APPENDIX A

MOWING

1. FACILITIES TO BE SERVICED. Public use areas, project office complex, dikes, and other areas on project lands. An inventory of mowing areas bid by the mowing areas is given in Table A-1.

2. FREQUENCIES AND TIMES OF SERVICE.

2.1. Work shall be performed only between 15 April and 15 October

2.2. Mowing of PUAs shall not be accomplished on Saturdays, Sundays, Federal holidays, or one workday before Federal holidays. Mowing at other locations is permitted on these days.

2.3. Work in parks shall be performed only between 7:00 a.m. and 8:00 p.m.

2.4. Mowing of all areas at each of the locations listed in Table A-1 shall be completed before work at another location is started.

2.5. The contractor shall not start work unless the grass and ground are dry enough for smooth cutting and equipment will not cause rutting of the ground. The contractor shall use good judgment in determining whether conditions are suitable for mowing operations. In cases where the contractor and the COR disagree about the suitability of conditions for mowing operations, the COR will determine whether work shall progress or stop.

3. DESCRIPTION OF WORK. The contractor shall perform the following work:

3.1. Mowing shall be performed in the following areas:

3.1.1. Improved areas are highly developed areas, normally located in PUAs. These areas shall be maintained between a minimum height of 2 inches and a maximum height of 6 inches. The limits of most of these areas are shown on the attached maps. In addition, mow the areas described below and around facilities shown on the drawings.

In addition, mow the areas described below and around facilities shown on the drawings.

3.1.1.1. Areas adjacent to all roads and parking areas shall be mowed to the top of the back slope of ditches. If ditches do not exist, mowing shall be accomplished for a distance of 50 feet from each edge of the road or parking area or to the tree line, whichever is closer. The limits of mowing at intersections shall be determined by the COR to provide a safe viewing distance for vehicles approaching the intersections. Areas adjacent to all roads and parking areas are further defined in the attached mowing maps.

3.1.1.2. Areas around oxidation ponds shall be mowed from the edge of the water to a point 10 feet outside of fences or 10 feet from the toe of dikes around the ponds, whichever is greater.

3.1.1.3. Areas around toilets located outside the limits of improved areas shown on the attached maps shall be mowed for a distance of 10 feet from the back and sides of toilets and between the nearby road and parking area. In addition, the area between pairs of toilets shall be mowed.

3.1.1.4. Eroded areas such as along the shoreline and road ditches shall be mowed to a height of 4 inches.

3.1.2. Semi-improved areas are undeveloped areas within PUAs that require occasional mowing. These areas shall be maintained between a minimum height of 3 inches and a maximum height of 8 inches. The limits of these areas are shown on the attached maps. Areas around oxidation ponds shall be mowed from the edge of the water to a point 10 feet outside of fences or 10 feet from the toe of dikes around the ponds, whichever is greater.

3.1.3. Dikes and Levees shall be maintained between a minimum height of 4 inches and a maximum height of 8 inches. The area adjacent to the river/lake side toe of these structures shall be mowed for a distance of 10 feet or to the existing tree line, if mowing was evident from previous year. The area adjacent to the land side toe of these structures shall be mowed for a distance of 10 feet or to the existing tree line, if mowing was evident from previous year. The locations of dikes/levees are shown on the attached maps, and the approximate limits of mowing are shown.

3.1.4. Lawn areas shall be mowed to a height of 2 inches and a maximum height of 4 inches. These include areas around the project office, overlook, and powerhouse. Limits of these areas are shown on the attached maps.

3.2. Trimming.

3.2.1. Every time improved or lawn areas are mowed, trimming shall be accomplished around all vertical objects protruding from the ground, including under guardrails, within the limits of these areas. This includes trimming along railroad ties delineating pullouts and campsites, and retaining walls.

3.2.2 The contractor may apply approved herbicides in lieu of trimming. The COR must approve use of chemicals (and proposed application locations). The contractor shall submit a list of proposed products with manufacturers Material Safety Data Sheets (MSDS) for review. All herbicides shall be applied by a certified applicator. Proof of certification shall be provided before application of any herbicides. The contractor shall submit an application report each time herbicides are applied. The COR shall furnish forms.

3.3. Cleanup.

3.3.1 Prior to mowing, the contractor shall remove rocks and debris that are likely to damage equipment or be thrown by the mower. After mowing is accomplished, the contractor shall remove vegetation and debris from parking lots, paved walkways and pullouts, and table and picnic shelter slabs.

4. PERFORMANCE REQUIREMENTS. The work performed under this appendix shall comply with the PRs given in Exhibit 1.

5. ANTITERRORISM AND OPERATIONS SECURITY REQUIREMENTS:

The Contractor shall be responsible for ensuring all personnel, to include sub-contractor personnel, comply with the training requirements and procedures identified on the document titled ***“Antiterrorism/Operations Security Requirements”*** in Section H, *Special Contract Requirements*. When items for which training is identified, the Contractor shall ensure that all personnel complete acknowledgement for the specified training; the Contractor is responsible for ensuring all training acknowledgments, when applicable, are submitted to the COR or Contracting Officer within 10 calendar days of contract award (or NTP for construction contracts). In no event shall any contractor or sub-contractor personnel be onsite prior to completion of any applicable training and submission of training verification. Training materials and verification forms will be provided by the Contracting Officer upon written request.

TABLE A-1

INVENTORY OF MOWING AREAS
LOCK 17 and LOCK 18

LOCATION		IMPROVED AREAS (ACRES)	SEMI- IMPROVED AREAS (ACRES)	DIKE PONDING AREAS (ACRES)	LAWN AREAS (ACRES)
25A-Afton	Landing	21			
26A-Bluff	Landing	18			
27A-Lock 18 Visit. Cntr.		10			
28A-Tallahassee Loop		7			
29A-Coal Creek			4		
30A-Lock 17 Access Rd./Maint.Cmpd.				33	
31A-Lock 18 Access Rd./Maint.Cmpd.				22	
TOTALS		56	4	55	